

The Group and What Happens on the Way to "Yes"

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While the negotiation archetype is of two individuals haggling with each other, more typically negotiation takes place within and between groups. In labor relations, union and management bargainers meet in committees; in community disputes (e.g., the citing of a waste disposal facility), groups of government officials, neighborhood residents, and environmental advocates face each other; and in international diplomacy, political leaders, diplomats, military and economic advisors, and others are commonly involved. Since negotiation takes place in groups, group dynamics play an important part in how bargainers come to agreement.

Curiously, analysts have only rarely considered group phenomena as an integral part of negotiation theory in either the descriptive or prescriptive literature (for exceptions, see Pruitt, 1977). A substantial body of work delineates both win-lose and win-win strategies and tactics that individual negotiators can pursue (Walton and McKersie, 1965; Pruitt, 1980; Fisher and Ury, 1981). Others researchers focus on the individual cognitive limitations and barriers that can impede a negotiator's ability to achieve beneficial outcomes (Raiffa, 1982; Bazerman and Neale, 1983; Lax and Sebenius, 1986). Finally, there is considerable work documenting the interactive dynamics of competition, cooperation, and the perils of

escalating conflict (Deutsch, 1973; Axelrod, 1984; Pruitt and Rubin, 1986).

The neglect of group dynamics is particularly problematic since new bargaining models encourage a problem-solving process that differs significantly from more traditional, linear concessionary models.¹ Studies of group process and dynamics over the past several decades have shown that, when individuals join groups, the collective activity is different than the sum of its individual parts; in addition, groups have their own dynamics that arise from the collective enterprise, and these can support or detract from a problem-solving process in negotiated contexts. Our purpose is to draw from scholarship on group dynamics, particularly recent work on task forces and new product teams, and explore the implications for mutual-gains bargaining. To clarify our argument and to allow greater specificity, we will examine one particular bargaining situation: contract negotiations between labor and management. A similar analysis could be done for other negotiating contexts.

Groups in Traditional and Mutual-Gains Bargaining

A group is a collection of individuals who interact, who are

¹ This new approach to negotiations is sometimes referred to as *principled* or interest-based *negotiations* (Fisher and Ury, 1981); *integrative bargaining* (Walton and McKersie, 1965; Pruitt, 1980) or *mutual-gains bargaining* (Raiffa, 19883; Lax and Sebenius, 1986; Susskind and Cruikshank, 1987). While these labels have slightly different meanings, the core of the processes are similar. We use these terms interchangeably to refer to a form of negotiation in which parties focus on interests, look for ways to expand resources, and focus on tactics other than power to find agreements that provide gain for all parties.

interdependent at least to some degree, and who influence or can be influenced by each other (Cartwright and Zander, 1968; Shaw, 1981). In most negotiations, there are three sets of group relations.

First, each side is usually represented by a bargaining team. Each team is charged to negotiate an agreement acceptable to its respective constituency. We will label these groups the primary negotiating teams. Each primary negotiating team needs to develop a group identity and a set of norms that will allow it to coalesce effectively. It needs to develop internal mechanisms for structuring work and for making decisions. In labor negotiations, labor and management each has a primary team.

While the primary teams need to coordinate internally, they also need to coordinate with the other primary team: they need to work with the opponent. We label this larger group, which includes primary negotiating teams from both sides, the integrating team. In most negotiations, including labor negotiations, the primary teams function at arm's-length most of the time and only occasionally cohere into an integrated group.

Finally, each primary team (and the integrated team) has a relationship it must manage with its "second table," the constituents who have ultimate authority over the terms of an agreement. The exact nature of that authority varies a great deal. In traditional collective bargaining, the authority relationship between management-primary teams and their constituent groups is based primarily on hierarchy, while the

authority relationship between union-primary teams and their constituents is based primarily on politics. These arrangements affect the ways in which constituent groups are involved and consulted.

Mutual-gains bargaining (MGB) introduces into this pattern of relations a new set of ideas and processes. MGB suggests a focus on interests and not positions, on inventing options for mutual gain rather than haggling over a fixed amount of resources, and on judging these options according to objective criteria instead of relying heavily on bargaining power to influence outcomes. In other words, negotiators are urged to engage in a process of joint problem solving in order to fashion agreements that maximize gains for both parties.

Normative models of mutual-gains bargaining describe a set of steps for carrying out this type of negotiation. Typically, parties are advised to establish an agenda that begins with mutual sharing of interests, followed by collective "brainstorming" to identify creative ways of satisfying these interests and of establishing criteria by which possible ideas can be evaluated. This process is intended to result in agreements that meet the interests of the various parties (Fisher and Ury, 1981; Susskind and Cruikshank, 1987).

But MGB does not just introduce new concepts and steps; it creates and depends on a pattern of group dynamics that is different from traditional bargaining. In order for MGB to be successful group norms within primary teams must change to allow

for broader participation. In addition, the integrated team must develop dynamics which are less cautious, become a place where interests are shared, and become more prominent in comparison to the primary team. This change, in turn, has an impact on how primary teams work. And, as more new ideas are generated, the nature and intensity of relations between primary teams and constituent groups need to be changed; the teams are under increased pressure to bring their constituents along in a process that is really being designed as it occurs.

The elements of the MGB process, while well defined in theory, provide little guidance once the parties actually begin negotiating. It is at this point that individual bargainers move into a group context, within their own team and across the table, and that the group dynamics can contribute to--or detract from--the problem solving. From a group perspective, the model should address the following:

- (1) the underlying individual and organizing dynamics that mark the early phases of group activity, specifically the development of group norms, that impact how the group does its work (Bettinghausen and Murnighan, 1985; Schein, 1988);
- (2) the importance of the middle stages of a group's life as an occasion for change in its normative and task structure (Gersick, 1989); and
- (3) the tension between developing the internal processes of the team and managing the relationships between external groups that will influence the group's product (Ancona, 1990).

MGB differs significantly from traditional collective bargaining in terms of the demands it makes on the relationships within the primary negotiating teams, the integrated team, and constituent groups. We will explore these differences in the

context of these three group perspectives. We will use data from ongoing field experiments in mutual-gains bargaining to describe the ways these issues manifest themselves and the dilemmas they create. Finally, drawing from the study of groups in others contexts, we will suggest ways in which principles of group process may be used to resolve these dilemmas.

Data and Methodology

The data used in this analysis is drawn from observations of three negotiations that took place in the United States in the late 1980's, (the names have been changed to preserve confidentiality). In each case, negotiators attempted to implement mutual-gains bargaining. We will not try to present a comprehensive analysis of these cases; instead we will draw from them to illustrate the ways in which group dynamics in negotiations affect, and are affected by, a mutual-gains approach to bargaining.

In the first case, which we will call Northwest, Inc., mutual-gains bargaining was effectively implemented, albeit in the face of great resistance from some constituents, and an agreement was reached by the appointed deadline. Mutual-gains bargaining was initiated after extensive meetings between constituents months before negotiations began, training included one phase attended by constituents and another for negotiators alone, and most of the negotiators supported mutual-gains bargaining. The actual negotiations, as in the other cases,

lasted for several months. There was a great deal of open discussion during negotiations, as well as plenty of frustration and conflict. Most people on both sides strongly supported the final agreement and the MGB process. We observed this negotiation from beginning to end.

In the second case, Southwest, Inc., the mutual-gains approach worked well during the first half of negotiations, but was effectively abandoned halfway through. In the end, the parties reached an impasse, and the union struck for three weeks. The mutual-gains process at Southwest was initiated over a year before actual negotiations, and included three separate training sessions. The first included negotiators and constituents; the others were for negotiators only. Both during training and in negotiations many constituents were ambivalent about the MGB process. A major influence in these negotiations was resistance from the company's corporate headquarters, and from the union's national leadership. In this case, we observed the training, and interviewed the negotiators during and after negotiations.

In the third case, Eastern, Inc., MGB was not effectively implemented at any time during negotiations. Instead, the negotiators reverted to traditional negotiations almost immediately. However, the effort did take some of the "edge" from the negotiations, and the parties did reach an agreement and did feel that the relationships had not been damaged by negotiations. Training for this company began several months before negotiations, but it did not include constituents, and

there was great controversy within the union about attending the training. In the last week before negotiations began, a new person was assigned to lead negotiations for the union. We were able to observe most of these negotiations from beginning to end.

In all three cases, the training occurred at off-site meetings. It included general presentations of the core ideas of MGB, negotiating simulations designed to illustrate those ideas, and, for the actual negotiators, an all-day bargaining simulation that gave people a chance to practice the MGB ideas that they were learning. The training also included explicit discussions about the merits of MGB compared with traditional negotiations, and some actual negotiations over the process they would use to negotiate.

Getting the Group Started: Norm Development in Groups

For primary teams, integrated teams, and constituents, as for other kinds of groups, getting started is a particularly difficult yet influential part of a group's evolution. Team members are often anxious about how they will fit in and establish themselves in this new social arena. Norms, or expectations about how members should behave, are formed early (sometimes in the first few minutes of the first meeting), and set the stage for future interaction. For example, if the leader sets the agenda, leads the meetings and criticizes anyone who disagrees with her, then the group members may soon learn to nod their heads and follow her lead. Understanding this early stage of a group's life is particularly important in mutual-gains

bargaining, where teams must embark on new ways of interacting.

Anxiety over group membership may begin even before formal meetings commence. Members worry about their role in the group, the control they will be able to exert, and whether they will be accepted (Schein, 1988). These individual concerns constitute the unconscious or emotional life of the group, which is often ignored as the group sets out to work. Yet these concerns often lead to behaviors vis a vis other group members that make getting started difficult and that interfere with rational task functioning (Bion, 1961, Rioch, 1975). Schein (1988) suggests that these issues of identity, control, and acceptance must be resolved before members can fully engage in the task of the group.

Members are concerned with establishing "identity" in the group. They need to figure out the roles they will play on the team --- whether they will be outspoken or quiet, aggressive or humorous, a leader or a follower. As members concentrate on these issues and work through the possibilities, their ability to listen and participate is often curtailed. Concerns about authority and influence also affect behavior in the early stages of a group. Members attend to the early dynamics in order to determine who will be in a controlling position and who will be influenced by others. As a result, early stages are often marked by testing of oneself and others to see where authority and influence lie. These periods may be marked by conflict among members over seemingly inconsequential things. It is important

to understand, however, that these conflicts involve establishing power and position as much as they involve disagreement over substantive issues.

Finally, members are always concerned about whether their individual goals will be congruent with those of the group, and whether they will be accepted by the members. These concerns are enacted during periods of high participation followed by those marked with periods of a quiet "wait and see" attitude, as members test to see how their input is received. Here again, group progress may follow the rhythms of member comfort rather than task work.

Individual concerns are often ignored as the team meets and begins to carry out its task. Previous research has shown that teams develop norms about their work, interpersonal relations, and relations with the host organization quickly, sometimes within the first few minutes of their first meeting (Ancona, 1980; Bettenhausen and Murnighan, 1985; Gersick, 1988). These norms evolve from a combination of individual member experience and that which the group develops as a whole. Team members bring familiar scripts from other group experiences to a new group situation, and these scripts give members a sequence of activity to follow in new and uncertain situations (Abelson, 1976; Taylor, Crocker, D'Agostino, 1978). In other words, a group's process is never a tabula rasa; its foundation is built on the existing scripts of the group members.

Early anxiety to make some progress pushes team members to

follow existing scripts and to begin work quickly by assigning roles and responsibilities. This "solution mindedness" (Hoffman and Maier, 1964) pushes members toward solutions without fully considering whether their assumptions are shared or accurate, what the assumptions are, and whether the structure they create will lead to the outcomes they seek.

While such progress is often comforting to the group, early norm development can be problematic over the long haul. Hackman, Brousseau, and Weiss (1975) show that for new or complex tasks, such as mutual-gains bargaining, previous modes of operating are often not congruent with the new task. They suggest that, before automatically following implicit patterns, members explicitly discuss "performance strategies," that is, how they will work together. Bettenhausen and Murnighan (1985) illustrate another problem with early, untested norm formation. In their zest to move the team along, members often ignore or don't realize that members bring different scripts and assumptions to the table. Thus, while task progress may be made quickly under an assumed consensus, conflict is often just postponed until the differing assumptions become clear. When this happens, it forces the group to backtrack and openly negotiate about the norms under which they will operate.

Individual adjustment to the group and norm formation occur not only in formal group meetings, but in other arenas as well. Informal dinners and parties, subgroup meetings, and one-on-one communications are all arenas in which identity, control, and

acceptance issues are worked out and expectations and work rules are set. Such activities may be designed to facilitate this early development process. However, norm formation is not solely a function of implicit scripts and explicit planning. Key events in the group's life can shape the rules by which the group functions. For example, a team that is penalized by top management for leaking key information is likely to develop strict norms about secrecy. Thus, a team's early formation process involves individual experiences, group meetings, informal contacts, and key events. All are important to the development of group norms that support mutual gains bargaining.

Getting Started in Traditional Labor Negotiations. All groups experience a great deal of anxiety in the first meeting about what norms of behavior and social order will emerge. In traditional labor negotiations, this concern is heightened by the high stakes involved in the bargaining and because, for many team members, bargaining is not part of a regular job. Collective bargaining is carried out, therefore, in a highly charged atmosphere marked by pressure, uncertainty and complexity.

In traditional negotiations, some clarity is provided by the existence of broadly understood scripts for negotiating which are reinforced by leaders and individuals who have been through negotiations before (Friedman, 1989). Elements of the established script include: each side begins with a laundry list of demands, then lets some issues "fall off the table" at the appropriate time; chief negotiators are aggressive at the public

bargaining table and more conciliatory and open in private "sidebar meetings;" chief negotiators exert control over their primary groups in order to channel communication across the table. These norms help people know how to act, what to say, and what to expect. Further, traditional patterns of behavior are strategically important in that they help to keep negotiators' goals, constraints, and desires hidden from the other side, while impressing constituents with the negotiators' strength and fervor. If these norms were not taught by old hands, they would be invented anew.

Supporting these norms is a social order that structures relationships within and between groups in negotiations (Friedman and Gal, 1990). There is strict hierarchical control within the primary team, and opposition between primary teams (the integrated team is not legitimate); members of the primary team are agents representing (and under the control of) constituents. This social order maintains the control over information and impressions that is the core of traditional bargaining. It also provides a clear notion of who is in control, who sets the norms, and whom to trust.

Getting started in mutual gains bargaining. In mutual gains bargaining, the development of norms is complicated for two reasons. First, the desired norms of interaction are different. Members of the integrated team need to reveal and explain their underlying interests and discuss options for addressing those interests. Second, existing scripts and power structures based

on traditional norms will drive behavior unless there are explicit efforts to shape norms in an alternative direction. This tendency results from lack of experience with a new process and the need to reduce ambiguity; negotiators return to familiar and comfortable scripts.

In order for mutual-gains bargaining to work, a new set of norms needs to emerge and emerge early. It is in the earliest stages of bargaining that the negotiations path is determined. This is when groups struggle not only with the concepts of mutual-gains bargaining but also over its implications for their own behavior and control needs. These struggles occur during training and continue into the early stages of bargaining. The norms, whether they support mutual-gains bargaining or not, emerge from these dynamics.

Joint training is a common method of introducing labor and management to mutual-gains bargaining. It brings them together off-site to learn the principles of mutual-gains bargaining, to discuss how they will negotiate, and to practice by using bargaining simulations (often switching roles). It is a time when members learn new skills, obviously, but training is also the first time the differences between the traditional and the mutual-gains bargaining scripts are played out. Thus as the groups go through training, they confront issues of dominance, control, and habit, and they develop --- either implicitly or explicitly --- the guidelines that will mark their negotiations.

During training, negotiators first understand the

implications that mutual-gains bargaining has for their power and control. At Southwest, Inc., for example, one lead negotiator was worried when he realized that mutual-gains bargaining involved direct participation by all members of the bargaining team. In response, he developed careful instructions for his team, detailing precisely what they could do or say during the simulations. He was worried not only that negotiators would subtly "give away" the company's positions, but also that members of his team would get used to acting independently. Concerned about the upcoming negotiations, he was reluctant to allow control to be diffused. Throughout the simulations and subsequent negotiations, when this negotiator was present, members of his team continued to defer to him and so limited their own contributions.

There is also a tendency in these early training sessions to reproduce old patterns. "Old hands," people who have been through bargaining before, may inadvertently "train" newcomers in the traditional approach. During the initial moments of the bargaining simulation at Northwest, Inc., for example, the union's most experienced negotiator explained the procedure to newcomers: if they wanted to have an idea conveyed, they should send a note to her. Some of the newcomers argued, based on the training, that this was inconsistent with mutual gains bargaining. In contrast with the situation at Southwest, this explicit discussion about process helped set the norm of open participation that continued well into the bargaining.

More generally, training allows both the primary teams and the integrated teams to discuss consciously what norms should be established for negotiations. During the training, they have the opportunity to explain why the traditional process made sense, express fears about the new process, and negotiate over the very process of negotiating. At both Northwest and Southwest, negotiators left the training program with a list of rules that they believed would govern negotiations.

The training phase is also critical because impressions made and formed there can last throughout negotiations. At Northwest, for example, two simulations were run concurrently (each had negotiators from both sides). One group fell into old patterns of negotiating, while the other used the mutual-gains bargaining approach quite well. During the debriefing, everyone learned which group had "failed" and which had "succeeded." Over the next months, individuals from the first group would occasionally be reminded, jokingly, that they were from the "remedial group."

When negotiations actually begin, group norms are still being formed. Because lines of authority are challenged by the mutual-gains bargaining training, people are still not sure how to act: no one quite knows how to start, and there are many long, awkward pauses. People ask each other: can we disagree, or do we have to be "nice"? Can everyone talk? Will we have caucuses? Indeed, some of the first conflicts were over the mutual-gains bargaining process itself. At Northwest, for example, one side was convinced that mutual-gains bargaining meant meeting together

all the time so that everyone could share ideas. The other side was equally sure that mutual-gains bargaining meant meeting in subcommittee so that members could develop individual areas of expertise and the integrated group would not have to depend on outside staff support. This was a confusing time for the integrated team; each side dealt with the confusion by accusing the other of not doing mutual-gains bargaining "right." Further, at the individual level, negotiators at Northwest corrected each other when any clearly understood aspect of mutual-gains bargaining was violated (e.g., referring to an "interest" as a "position"). Some even corrected themselves, stopping and apologizing when they recognized that they had made an inappropriate statement.

At Eastern, Inc., mutual gains bargaining was essentially abandoned during this early stage. The lead union negotiator, who had not attended the training program, insisted on maintaining the traditional process with which he was familiar. He established a pattern on the first days of negotiations that stuck for the rest of the meetings. At the first meeting, the negotiators who had been through joint training hesitated to sit down, not knowing if they should be interspersed with the other side or with their team. The lead union negotiator settled the issue by seating himself in the middle chair of one side of the table, instructing his team to sit next to him. At this point, the two primary teams sat facing each other across the table in traditional fashion, a signal that the lead negotiator was in

control of his team and that the two sides would not be working together. This pattern persisted throughout the negotiations.

Establishing norms that support mutual gains bargaining may depend on a factor as simple as relabeling the steps in the negotiating process. At Southwest, for example, negotiators called the initial meetings "pre-bargaining" sessions so that they would not preclude using traditional bargaining later. At Northwest the initial phases were also labeled "pre-negotiations," in order to align actual bargaining with the steps outlined in training. This labeling led to the question that some negotiators asked each other later in negotiations: "Are we 'negotiating' yet?"

In the three cases, relationships stabilized in different ways. Negotiators at Northwest and Southwest eventually settled into a pattern of open discussion as an integrated team. At Northwest the integrated team included all negotiators, while at Southwest there were several integrated teams operating in specialized subcommittees. At Eastern, the traditional approach prevailed.

The Midpoint in a Group's Life

Collective bargaining passes through decision-making stages where parties establish a bargaining range, explore it, and ultimately make decisions about settlement (Douglas, 1962: Gulliver, 1978). Studies of groups operating on a variety of tasks with set time limits suggest that the midpoint in a group's existence is a second critical juncture. It is at this point

that groups engaged in negotiations have the opportunity to shift their work patterns.

Gersick (1988, 1989) provides some understanding of the midpoint's pivotal role. In contexts as diverse as student projects and task forces at a bank and a hospital, she found that teams develop basic approaches to work, to relationships among members, and to their environment early, often during the first meeting. These early patterns dominate team functioning until the midpoint, which serves as a time to reevaluate the group's efforts. Team members often realize that progress has not been as fast as desired (or that the product does not look as if it will meet the group's objectives), and that there is a limited amount of time to get all the work done. While the first half of a team's life is spent making incremental or evolutionary changes, the midpoint can be a period of revolution. Group members are suddenly open to assessing how well they have done and what needs to be changed. If at first members were closed to outside feedback, now they seek it out. If a team was preoccupied with generating ideas, now they start evaluating those ideas. During this time of reassessment, team members reshape the way they approach their task, each other, and their environment. Thus, during the early and midpoint stages of a group, members are most open to suggestion and facilitation. Following the midpoint revolution, teams go back to incremental adjustments along the lines set by the midpoint change.

The concept of the midpoint revolution was "discovered" in a

study of eight temporary task forces, that had explicit deadlines (Gersick 1988). Many teams do not have similarly definitive time lines. Yet even these teams have milestones and subtasks with defined timeframes. So a team can go through this pattern of evolutionary change punctuated by revolution during a particular portion of its work or development.

Teams sometimes fail to carry out this midpoint change because of their organizational contexts (Ancona 1990; Hackman, 1990). Teams often get labeled based on early indicators of performance. Once a team is labeled as either a high-potential or low-potential performer, that reputation becomes a self-fulfilling prophecy from which the team cannot escape. Even if the team changes its mode of operation, the change may not be acknowledged in the surrounding environment. Alternatively, the revolution may be inhibited because group members feel constrained by their reputation. As with early formation processes, the midpoint and labeling phenomena can be managed to facilitate mutual-gains bargaining.

The Midpoint in Traditional Negotiations. In traditional bargaining, the first phase of negotiations is a "feeling out" process: each side presents its demands, hears the other sides problems and concerns, and works out some preliminary agreement on nonfinancial issues. However, negotiations often do not get "serious" until many weeks later. There has been no research explicitly on the midpoint in negotiations, but the notion that at some point the style, tone, and topic of negotiations go

through a major shift conforms to observations of traditional bargaining (Douglas, 1962). This switch tends to mark the point when the "show" ends and "real bargaining" begins. At this point many of the trivial issues quickly "fall off the table," the lead bargainers tighten control over negotiations, more happens in sidebar discussions, financial elements of the contract become more prominent, and each side begins to seriously assess the impact of a strike.

The Midpoint in mutual-gains bargaining. In mutual gains bargaining as well, the midpoint seems to be a major point of transition. As in traditional bargaining, deadlines become salient and the volume of work seems daunting. Further, mutual-gains bargaining adds its own pressures. There tend to be more outstanding issues, more suspicion from constituent groups, and a required shift in process from generating ideas to actually deciding what the ultimate package will be. At this point many of the problems experienced in the initial phases are reintroduced. That is, there is confusion about what to do, questions about authority, and debates about what is "right" according to mutual-gains bargaining. Thus the midpoint constitutes a significant point of risk.

In the two cases where mutual-gains bargaining was actually used, the experiences were quite different. At Northwest, about halfway through negotiations, bargainers began to worry about whether they would be able to finish by the deadline. During the first month of negotiations, norms supported discussing things

openly, sharing ideas, and avoiding premature criticism of options. But nothing had been decided. Because mutual-gains bargaining was taken seriously, more issues were raised than normal and more ideas (including radical ones) were generated; and negotiators tried to judge these ideas using objective criteria. All of these factors created more work for negotiators, stretching their capacity to collect relevant data. When negotiators began to realize this, panic set in.

At this point the issue that had dominated the first days of negotiations reemerged: how do we do mutual-gains bargaining? The negotiators agreed they had reached a different phase. While they had learned how to discuss interests and generate options, they had not yet experienced *packaging* and *deciding*. Each primary team had different ideas on how to deal with this problem.

In the face of this pressure, the integrated team at Northwest asked the mutual-gains bargaining trainer for assistance. He supported one side's proposal that they break up into subcommittees that would specialize in different issues. This would allow for more efficient use of time, and for the development of expertise in certain areas (health insurance provisions, for example, were difficult to master). At this point, small groups worked intensively to eliminate unrealistic options, decide on concrete numbers, and make relevant tradeoffs. The midpoint shift was productive.

In contrast, at Southwest, the teams reverted to the

traditional script at the midpoint. About halfway through negotiations, "pre-bargaining" ended and "bargaining" began. During pre-bargaining, integrated teams worked in subcommittees exploring problems and generating options. Constituents and the lead bargainers permitted this activity as long as "real bargaining" was not occurring. But once actual decisions had to be made, lead bargainers, under pressure from constituents, retook control. "Real bargaining" occurred at the main table, where the lead bargainers controlled what was said. As in traditional approaches, much of the final bargaining was carried out among the top negotiators in sidebar meetings. The bargainers who had formed integrated teams in subcommittees felt isolated and angry that the lead bargainers (who had not participated in prebargaining and therefore did not gain experience in the mutual-gains bargaining approach) took control of negotiations.

At the midpoint the mutual-gains bargaining process can be scuttled. If there were doubts about the process from the beginning, they may come to the fore when negotiators realize that time is running out. In addition, constituent groups and others increase their monitoring of the integrated team's activities and may pressure the team to behave in more accustomed ways. Thus, mutual-gains bargaining is especially vulnerable at the midpoint.

Ironically, however, teams following a traditional approach may shift to using elements of mutual-gains bargaining at the

midpoint (Putnam, forthcoming). In one case not in our study, the union backed out of joint training in mutual-gains bargaining, while management attended. Negotiators initially used the traditional approach. In one subcommittee where progress was stymied, a management negotiator suggested that they try using some elements of mutual-gains bargaining. The integrated team agreed and spent several days brainstorming for innovative ways to solve a sales commission formula problem. This process helped, but members of the integrated team agreed that too little was done, too late. A switch to mutual-gains bargaining can occur at the midpoint, but it is more likely that external pressures, time constraints, and a focus on financial issues will drive out mutual-gains bargaining at this point.

Balancing Internal and External Group Processes

When parties engage in mutual gains bargaining, the relationships between the primary, integrated, and constituent groups is more complicated than they are in traditional bargaining. Each team must manage not only its own internal dynamics but also the interactions with the other groups. Research on other types of teams (new product teams, consulting teams, and top management teams) suggests that the management of these external relationships is more predictive of performance than is its internal dynamics (Ancona, 1990; Ancona and Caldwell, 1989; Pennings, 1980; Pfeffer, 1986).

Teams facing the same tasks within the same organizations still make very different decisions about how to allocate time

between internal and external activities. Groups use three major strategies to define their initiatives toward outside groups (Ancona, 1990). *Informing* teams remain relatively isolated from their environment, prefer that members concentrate on internal processes, use existing member knowledge to carry out their task, and later inform other groups about what they have decided. *Parading* teams have more interaction with other groups and top management, but that interaction is passive -- they observe and scan what these other groups are doing. In contrast, *probing* teams actively engage outsiders in all phases of their work. They continually gather information and revise their knowledge through contact with others in the organization. Probing team members also ask for feedback on their work, test out new ideas with outsiders, and promote their team's achievements throughout the organization.

For teams whose success depends on outsider support or acceptance (such as the ratification requirement of collective bargaining), a probing strategy seems to result in the highest performance. Internally oriented informing teams are most likely to fail because their work is insulated from critical constituencies. They may develop an outstanding product or process, but it will never be accepted or implemented because of resistance among constituent groups. Probing teams, however, do pay a price for their success. In the short term, members of these teams experience confusion, unclear goals, and dissatisfaction with the work of the group. Because these team

members are actively engaged in trying to understand external views, they bring diverse opinions and perspectives into the team, which in turn exacerbates the conflict and confusion attending any group effort. However, as teams learn to work with this ambiguity and develop ways of dealing with conflict, they eventually become the higher performers (Ancona, 1990).

Teams can use a probing strategy to handle interdependence and coordination with other groups. For example, representatives of these other groups can be invited to present their views. Or a team can negotiate with other groups about the parameters within which it will work and then remain within those limits. A third alternative is to introduce a parallel structure whereby other members of management and the union participate with the integrated group in certain phases of training and negotiation. Periodic sharing of ideas between the parallel groups may improve the understanding and acceptance of the final products. A probing strategy may be superfluous if top management sponsorship is strong right from the start. Groups do not have to work on gaining support since it is provided by the sponsor at pivotal times and places.

Constituent Relations in Traditional Negotiations. In traditional collective bargaining, relationships with constituents, or "intra-organizational" bargaining, is always problematic (Walton and McKersie, 1965). Adams (1976) describes it as a "cycle of distrust": If negotiators get too close to opponents, constituents become suspicious, monitor the

negotiators, and thereby reduce their flexibility to act and produce a good agreement. When the agreement is not what is expected, this reinforces the distrust that began the monitoring. Given the requirements for ratification, managing constituents is a critical element in labor negotiations.

In traditional bargaining, constituent relations are often managed with some drama --- public shows of anger that mask the private, unobserved arenas of "real" negotiations. Constituents may observe the shows directly or hear about them indirectly from members of the bargaining team. Either way, constituent groups need to be convinced that their representatives are working hard on their behalf. Whatever private deals are reached must then be "sold" to constituents as the best that could be achieved. This is a careful blend of the isolated "informing" approach and the more active "probing" approach. This pattern is not well suited to mutual-gains bargaining.

Constituent Relations in mutual-gains bargaining. Constituent relations seem to be more of a problem in mutual-gains bargaining. Typically constituents are not centrally involved in the decision to try mutual-gains bargaining. Their exposure to the process is limited because they do not receive extensive training; and, even if they were to participate more fully, learning about mutual-gains bargaining comes more from the doing than the training. Further, the process itself is likely to lead to innovations and ideas that were not foreseen or pre-approved by constituents. Finally, distrust builds as constituent groups

see their representatives working together in an integrated fashion. For these reasons, mutual-gains bargaining presents the primary teams with significant environmental-management challenges.

In all three cases, negotiators faced pressures from constituents even before negotiations began. At Northwest, constituents allowed negotiators to commit to training only after they agreed to set an early deadline for negotiations so that, if mutual-gains bargaining did not work, they would still have time to negotiate in the traditional manner. At Southwest, initial constituent worries were deflected when the negotiators said that the mutual-gains bargaining approach would only be used during "pre-bargaining." The group would then revert to traditional bargaining when real negotiations began. In both cases, negotiators had to convince constituents that traditional bargaining was not precluded by trying mutual-gains bargaining.

When negotiations began, constituent expectations and misunderstanding of mutual-gains bargaining continued to constrain negotiators. Before the MGB approach was completely scuttled at Eastern, union constituents insisted that their demands be presented to management. The primary union team understood that these demands were traditional "positions," not a list of "interests" (the beginning point for mutual-gains bargaining discussions), but they felt compelled to make the presentation anyway. They tried to skirt the problem by claiming, "We are just doing this for our members, then we can do

mutual-gains bargaining." However, it was hard to develop a mutual-gains bargaining approach once the stage had been set by these demands. A similar problem occurred at Northwest. Even though a broad range of constituents from both sides attended the first day of training, they did not understand the distinction between interests and positions. As a result, the list of "interests" presented by the union to management were seen as inappropriate by management negotiators, and, an indication of the union's inability to do mutual-gains bargaining.

Constituents also resisted mutual-gains bargaining because it generated innovative options that they had not foreseen or approved. Once bargainers understood brainstorming, they became excited about the process and generated new ideas. Inevitably they found themselves too far ahead of their constituents. They discussed ideas that were not "approved" by constituents and, when word got out that new, "dangerous" proposals were being negotiated, constituent monitoring intensified. At Northwest, the lead union bargainer faced an angry constituent-advisory group member, who complained that the advisory group was not needed if the primary team could launch into new areas without their approval. On the management side, the president and other members of the senior management team often rejected new ideas. Similarly, at Southwest, when top managers and union leaders heard that some temporary agreements were being reached in subcommittee meetings, they quickly rejected the agreements.

In mutual-gains bargaining, negotiators are caught between

constituent expectations that they will be kept informed on every aspect of negotiations, and the need for open, innovative discussions. Constituents could be informed of every new idea, but this would greatly restrict the brainstorming phase and tie negotiators up in constant meetings with constituents. Yet if negotiators eventually bring back ideas to constituents that are too radical or too difficult to understand without bringing them along gradually, the new ideas will not be accepted. And since radically new ideas are apt to be generated in mutual-gains bargaining, constituent management problems are heightened considerably. Moreover, these problem are likely to accumulate as the midpoint of negotiations approaches, so constituent pressures may push the midpoint switching process in the direction of traditional bargaining.

In mutual-gains bargaining, some basic tenets of traditional constituent management are violated: the primary teams become an integrated team, raising constituent suspicion; radical rather than incremental changes are discussed; and information flows freely, to constituents as well as to opponents, so that it is more difficult to manage constituent impressions of the content and process of negotiations. In traditional bargaining the negotiating group has a process for managing its relationships across boundaries. Those who use mutual-gains bargaining will need to create a new way to balance the tension between informing and probing.

Conclusions

Theory in mutual-gains bargaining generally presumes that negotiators act as unitary actors. Group dynamics is a relatively understudied and undertheorized dimension of negotiation. As a result, the prescriptive advice that comes from theory and practice tends to focus on the individual levels. Based on this exploration of group process, it is possible to supplement existing normative theory with recommendations aimed at the group level. Many of these recommendations presume either that an outside interventionist is present, or that an insider takes the lead in introducing changes.

Assistance in Getting Started.

Getting started requires attention to individual members' concerns about their position, authority, and acceptance. These concerns are likely to be most pronounced among leaders and others who will perceive that mutual-gains bargaining erodes their power and influence. Assistance in getting started must ensure the development of norms that support mutual-gains bargaining, not traditional models.

It is clear that the individual concerns of members regarding identity, acceptance, and authority need to be addressed if the primary and integrated groups are to function effectively. Members need to get to know each other, to test one another, and to find their place in the group process. Until they do so, they will be unlikely to map out a reasonable approach to negotiations, create a realistic agenda, or share the

kinds of information required for mutual-gains bargaining.

These concerns can be addressed in a variety of ways. Any occasion that provide opportunities for members to interact and get to know each other will ease some of the concerns and anxieties experienced in the early stages. Preliminary meetings held to plan upcoming negotiations or to share information also give members an opportunity to test and get to know each other. For example, in a new labor-management relationship, Harvard University administration and Harvard support staff allocated 60 days to meet, exchange information about the university and the union, and get to know each other before they went into formal bargaining. Training that precedes mutual-gains bargaining can have the same effect, especially if participants have sufficient time to process both the skills and the experience.

While formal meetings are important, some of these issues can be worked out in informal get-togethers away from the immediate demands of the moment. Dinners, drinks, and volleyball games give people an opportunity to step out of role and get to know each other on a more personal basis (Friedman and Gal, 1989; Kolb and Coolidge, 1988). Indeed, meeting away from the table is an oft mentioned characteristic of negotiations in other cultures.

There are people whose roles and positions will always change dramatically when negotiations shift to a mutual gains approach. In collective bargaining, these are the chief negotiators for both management and labor. Under traditional

methods, they exert considerable control and authority, which must change if the more participative mutual-gains model is to be implemented. Thus, any intervention must include some attention to the leadership. First, it is important to recognize these stakeholders as the ones most likely to be resistant. Second, any intervention must include some separate time with leaders so that their special concerns can be addressed. Generally, any discussions of this sort should be handled in private, over drinks or dinner, so that the leader is not embarrassed or humiliated in front of the group. Observations about their behavior, the subtle ways in which they may be undercutting the process, can be discussed in a casual way. Indeed, what we know about successful change efforts suggests that unless the leader is solidly on board, significant change is unlikely to result. Thus, these meetings become a test of commitment. It is important to realize, however, that special attention to leaders may reinforce their position rather than assisting them to give up some control and authority.

Norms form and solidify early in a group's life. Groups new to mutual-gains bargaining need to attend to the norm development process and be on the lookout for existing scripts that threaten to drive out new behaviors. This is as important a part of training as learning the actual skills themselves. Indeed, a key norm to develop is to confront explicitly traditional ways of doing things when they creep in. There are several ways that this can be accomplished. First, traditional and mutual-gains

approaches can be formally debated by having people act as devil's advocates for the old approach (Mitroff and Mason, 1981). Or the group can agree to comment when people are not behaving according to the mutual-gains model. Thus, like the groups at Northwest, they can humorously label traditional behaviors as "wrong." Generally doing things in new ways can break up old patterns. These new things might include sitting in different positions, exchanging roles in simulations, and trying exercises that loosen up existing scripts (such as creativity generating games). All of these are attempts by the group to break down barriers that impede the development of norms that support mutual-gains bargaining.

Assistance at the Midpoint.

The negotiations midpoint presents both special challenges and special opportunities for mutual gains bargaining negotiators. In order to continue mutual-gains bargaining past the midpoint, it is necessary to anticipate the changes that will occur. It is discouraging, even to the most committed negotiators, to discover that they are far from agreement despite their best efforts, and to begin to wonder if this new process actually works.

Negotiators need to be reassured that the transition they face is a natural one. It does not indicate that their efforts up to the midpoint were for naught. An apt analogy is to a building that is under construction. One can go by the building lot for months and months and see no visible progress. It

appears that nothing is getting done. Then suddenly the building frame goes up in a few days and it seems like a miraculous accomplishment. Yet the frame could not have been put up so quickly and easily if months had not been spent putting in a foundation under ground. After the frame goes up progress slows again as the work changes to that of putting up walls and interiors. Because the initial period of this process can be so frustrating, support and intervention can be very helpful.

Midpoint intervention can include analysis, brainstorming, renegotiating how to negotiate and restructuring. As a first step, negotiators should be encouraged to look at what they have accomplished, what is left to accomplish, and what changes in the

bargaining process are needed to complete negotiations. Negotiators can use the very process they applied in the first half of negotiations, that is, they can brainstorm about ways to proceed that are neither the traditional ones nor the ones used during the inventing stage.

Thinking in terms of opposites can facilitate brainstorming: if groups worked in subcommittee before, maybe working at the main table would be better now; if they focused on internal process before, maybe they should focus on external relations now. Once they have analyzed what needs to be accomplished and developed new ideas for approaching those needs, the groups will have to renegotiate the structure and process that they will use in the final stages of bargaining.

The midpoint can be a time when the group feels overwhelmed. Although it may appear counterproductive, this may be the time for the group to take some time out from their work. Sessions where the group can vent its frustration or where additional training occurs enable the group to deal explicitly with its midpoint issues. The group may be resistant to taking time when they already feel short of time. However, directly confronting some of these issues may enable the group to deal less emotionally with the time problem. It may be appropriate for the consultant to assist in running these kinds of sessions.

The midpoint is also an opportune time to restructure the group. This can include a change of personnel or a change in the patterns of group work. For example, this could be a time to

bring in a constituent or someone with a particular expertise that the group now needs. Similarly a group that was meeting two times a week for two hours may now need to meet more often or for a longer duration.

Vigilance is particularly important at the midpoint. Negotiators need to keep a sharp eye on behavior, as old habits and safe, traditional routines can easily reemerge under the increased pressures of the second half of negotiations. At the same time, it is also important for the groups to commend themselves. They need to celebrate the progress that they have made thus far and use that as a basis for continuing to the final stages.

Assistance in Managing Internal/External Relationships.

Balancing internal and external demands is among the most difficult tasks facing the team engaged in mutual-gains bargaining. Whatever strategy is chosen involves tradeoffs between internal cohesion and external acceptance, between creating an innovative product and seeing that product implemented. Several interventions can facilitate this delicate balancing act. These include training external constituents more thoroughly, encouraging explicit *probing* activity, making brainstorming an intergroup rather than an intragroup activity, and obtaining sponsorship from the beginning.

External constituents often feel like second-class citizens when mutual-gains bargaining is introduced. The prospects for better support may lie in the ways constituents are treated

during the early stages. Training these "outsiders" in the elements of mutual gains bargaining is a start, but it is not enough. External constituents need to be prepared for the new roles that they will play over the course of the negotiating process. They will be called upon to provide information, suggestions, feedback, and support throughout the negotiations. They will be asked to comment on only partially formed ideas, ideas that may be very different from those formulated in traditional bargaining. Consultants and members of the primary group need to forewarn constituents that their ideas may seem bazaar or useless but that these ideas may improve given additional time and thought. Thus, constituencies need to be trained to become an effective part of the process.

A *probing* strategy promises to be the most effective at balancing internal/external relationships in mutual-gains bargaining. Therefore teams, as part of their training, need to be instructed about the elements of a probing strategy. First, team members need to face up to the political realities of change in organizational life. Any new endeavor will have its allies and blockers. Teams need to map the pockets of support and resistance and find the opinion leaders who can bring constituent groups along. Once supporters are identified, they must be cultivated and given information that will encourage them to convince others of the chosen options. Likewise, resisters need to be contained and defused. Perhaps they can be given inducements to support the negotiated settlement, or at least to

keep silent so that they do not mobilize a blocking coalition. This political aspect of probing requires proactive behavior. It is not enough for the team to deal with management and labor representatives who happen to show up at meetings. Rather, opinion leaders must be identified and then these people must be cultivated. The integrated team, with or without the aid of the facilitator, needs to carry out this probing activity.

A second aspect of probing is testing, in which the team tests its ideas out on various constituent groups. Questions such as, "If we did this, what would your reaction be?" and "Does this satisfy your need for an easy to implement compensation package?" are examples of testing procedures. Testing should be an ongoing process; it should also be started early, before blocking groups have an opportunity to mobilize against an option. Many teams generate excellent ideas only to be criticized or even disowned by constituent groups when those ideas are presented. Those external groups need to get used to the new ideas and to feel as if they had a part in shaping them. In the short term, testing may demotivate the team, as many of their ideas may be derided or actually vetoed. To avoid constituent testing, however, is to pay a high price later in the negotiations.

Inventing options through brainstorming is typically seen as a task that occupies the integrated group or subcommittees of its members. For probing teams, however, brainstorming becomes an activity for both the integrated and the constituent groups.

Both sets of groups can produce, criticize, and evaluate ideas and options. It is a well-known phenomenon that ideas are more easily accepted when people feel that they have participated in their production. Therefore, bringing a wider range of stakeholders into the brainstorming process increases the probability that those ideas will eventually be implemented. Again, there are costs to this strategy. It takes time to contact outsiders, and the group may have more ideas than it can handle already. Further, the group may feel pressured to accept the external input it solicited. Nonetheless, this may be a small price to pay for acceptance of the settlement in the final stages.

Finally, it should be clear that managing all these external activities will be much easier if there is clear, public support from a well-placed sponsor at the outset. Support from the top of the labor and management organizations provides legitimacy for the integrated group. With blessings from on high, it becomes easier to garner additional backing from other stakeholders. Generally, probing is facilitated when the teams do not have to fight to schedule meetings, and when an influential sponsor has already done some of the marketing. The probability of success is improved enormously when the project begins with top-level support and when that support is given in both public and private domains.

This article has focused the group research lens on the process of mutual gains bargaining. Key points from this group

perspective include the importance of managing the beginning of a group's life, its midpoint, and its external relationships. This analysis has resulted in a set of techniques for improving mutual gains bargaining. While the analysis used the labor-management setting to illustrate major ideas, the concepts developed and the recommendations offered have implications for negotiations conducted in other settings as well. Clearly, negotiating with a MGB approach poses potential pitfalls, but some of these may be avoided if group dynamics are managed effectively.

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